IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- IV)

CP (CAA)-02/ND/2022
Connected with
CA (CAA) - 181/(ND)/2019

IN THE MATTER OF SCHEME OF AMALGAMATION:

BETWEEN

M/s. SANWARIA BARTER PRIVATE LIMITED
... Transferor No.1/ Petitioner Company No.1

AND

M/s. SAPTRISHI VINIMAY PRIVATE LIMITED
... Transferor No.2/ Petitioner Company No.2

AND

M/s. GREENFIELD DEALCOM PRIVATE LIMITED
... Transferor No.3 / Petitioner Company No.3

AND

M/s. BRIGHTFUL VINCOM PRIVATE LIMITED
... Transferor No.4/ Petitioner Company No.4

AND

M/s. VIKSAT MERCHANDISE PRIVATE LIMITED
... Transferor No.5/ Petitioner Company No.5

WITH

M/s. PARAM MITRA ASSOCIATES PRIVATE LIMITED
... Transferee Company/ Petitioner Company No.6

Order Delivered on: 08.06.2022

Section: 230 to 232 of the Companies Act, 2013

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SH. DHARMINDER SINGH, HON'BLE MEMBER, (JUDICIAL)

SH. RAHUL BHATNAGAR, HON'BLE MEMBER (TECHNICAL)

ORDER

PER: SHRI RAHUL BHATNAGAR, HON'BLE MEMBER (TECHNICAL)

This petition has been filed by the Petitioner Company under Sections 230 and 232 of the Companies Act, 2013 read with the Company (Compromises, Arrangements and Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016, for the purpose of approving the scheme amalgamation, as contemplated between the Transferor Companies and the Transferee Company. The copy of the scheme has been placed on record.

2. The present petition has been filed jointly by the transferor company No. 1 to 5 and Transferee Company (hereinafter together called "the Petitioner Companies"). It is represented that the registered office of the Petitioner Companies being situated in Delhi, therefore, jurisdiction lies with this Tribunal.

3. The Petitioner Companies submits that the scheme of amalgamation would benefit the Petitioner Companies and their respective shareholders and creditors inter alia on the account of the following reason:-

   a. With a view to facilitate focused management and efficient utilisation of assets and resources of the Transferor Company, it is considered desirable to amalgamate the Transferor Company No.1 to 5 with the Transferee Company.

   b. Consolidation of entities will enable most optimum reflection of the combined resources of the transferee company. This will also result in greater transparency and greater accountability to the shareholders.

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c. Consolidation of entities will result in significant reflection in the multicipity of legal and regulatory compliances required at present to carried out by the companies and also avoid duplication of administrative function and eliminate multiple record keeping.

4. The appointed date as fixed for the proposed scheme of Amalgamation means the open of business hours on 1st April, 2019.

5. A perusal of the petition discloses that the first motion application bearingCA (CAA) - 181/(ND)/2019 was jointly filed by the Petitioner Companies. Based on the averments made in the said application the Tribunal vide order dated 08.01.2020 dispensed the meetings of the equity shareholders, secured creditors and unsecured creditors of the respective Petitioner companies.

6. The petitioner companies vide order dated 20.01.2022 were directed to issue individual notices to the (i) Regional Director, Ministry of Corporate Affairs, (ii) Registrar of Companies, NCT of Delhi and Haryana, (iii) Official Liquidator, LokNayakBhavan, Delhi (iv) concerned income tax department. The Petitioner Companies have jointly filed an affidavit of service in respect of notice of petition to the statutory authorities dated 22.02.2022 in compliance of the order dated 20.01.2022 affirming that notice of the proposed scheme of amalgamation along with all the annexures had been served on the Regional Director, Ministry of Corporate Affairs, Registrar of Companies, NCT of Delhi and Haryana, concerned Income-Tax Department and the Official Liquidator respectively.

7. The Petitioner Companies vide order dated 20.01.2022 were further directed to advertised the notice of final hearing be advertised in the newspapers namely, "Business Standard" (English, Delhi edition) and "Business Standard" (Hindi, Delhi edition). The Petitioner Companies have filed the affidavit in respect of notice of hearing on 22.02.2022 in compliance of the order dated 20.01.2022

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affirming that notice of hearing was duly advertised in Business Standard (English, Delhi edition) and ""Business Standard" (Hindi, Delhi edition) dated 10th February, 2022.

8. Pursuant to the Publication in the daily newspapers, for listing of the matter before this Bench, no objector has appeared before us.

9. The tribunal vide its order dated 28.04.2022 had granted the last opportunity to all the concerned statutory authorities to file the reply in the matter, if not filed, failing which the right to file reply stands closed and no further opportunity shall be given.

10. The reply of the Official Liquidator have been filed. The report of the official liquidator has been filed vide affidavit dated 27.04.2022 stating that on the basis of the information submitted by the Petitioner Companies, official liquidator is of the view that the affairs of the aforesaid transferor companies do not appear to have been conducted in a manner prejudicial to the interest of the members or to the public interest as per the provisions of the Companies Act, 2013.

11. The Income Tax department has not filed its reply. Be that as it may, in order to protect the interest of revenue, it is to be made clear that there shall be no impediment on the power and jurisdiction of the Income Tax Department in recovery of pending Income Tax dues, penalties etc., if any, as provided in the law.

12. The Regional Director, Northern Region has not filed its reply. Be that as it may, in order to protect the interest, it is made clear that the petitioner companies shall be no default in filing the statutory return /documents with the RoC or with the Regional Director. Further, the Petitioner Companies have given affidavit under section 230 (3) stating that no prosecution has been filed, no

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complaints are pending and no inspection or investigation has been conducted in respect of the petitioner companies.

13. In view of the foregoing, upon considering the approval accorded by the members and creditors of all the petitioner companies to the proposed Scheme, and no objections being raised by the office of the official liquidator, there appears to be no impediment in granting sanction to the Scheme.

14. Consequently, the sanction is hereby granted to the Scheme under sections 230-232 of the Companies Act, 2013 and the Company (Compromises, Arrangements and Amalgamations) Rules, 2016. The sanctioned Scheme of amalgamation shall be binding on all the petitioner companies and on all their respective shareholders and creditors.

15. The Petitioner Companies shall also be bound to comply with the statutory requirements in accordance with law. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this court to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of both the petitioner companies.

16. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any way granting exemption from payment of stamp duty, Statutory dues or any other charges, if any, and payment in accordance with law or in respect to any permission/ compliance with any other requirement which may be specifically required under any law.

17. This tribunal further order that upon scheme of Amalgamation coming into effect;

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a. That Transferor Companies shall stand dissolved without being wound up and without any requirement of any further act or deed by the parties in accordance with the Act;

b. All the contracts, deeds, bonds, insurance, letters of intent, undertakings, arrangements, policies, agreements and such other instruments entered into with and/ or given by, as the case may be, the various Central/ State Governments, Statutory or regulatory body or agencies or third parties with respect to the Transferor Companies, shall without any further act, deed, matter or thing, stand transferred to and vested in the Transferee Company;

c. All business activities engaged in by the Transferor Companies shall be continued by the Transferee Company under its name;

18. The Petitioner Companies shall within thirty days of the date of the receipt of this order cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the Registrar of Companies shall place all documents relating to the transferor companies and registered with them and shall consolidate the files of the companies, is accordingly duly approved and sanctioned in terms of the above.

19. Any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

The petition stands disposed of in the above terms.
Let copy of the order be served to the parties.

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(RAHUL BHATNAGAR)
MEMBER (T)

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(DHARMINDER SINGH)
MEMBER (J)